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extraordinary
EXTRAORDINARY

Part II—Section 3—Sub-section **(i)**
PART II—Section 3—Sub-section (i)

published with authority
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No. **713]** New Delhi, Wednesday, November **2,** 2022/Kartak **11, 1944**
No. 713] NEW DELHI, WEDNESDAY, NOVEMBER 2, 2022/KARTIKA 11, 1944

Ministry of Environment, Forest and Climate Protection

AJDHInformation Nai Dadalli, November 2, 2022

G.S.R. 801(E).—Whereas the draft rules, namely, the E-Waste (Management) Rules, 2022 were published by the Government of India in the Ministry of Environment, Forest and Climate Change in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i), vide Notification No. S.O. 360 (P.), dated the 19th May, 2022, inviting objections and suggestions from all persons likely to be affected thereby before the expiry of a period of sixty days from the date on which copies of the Gazette containing the said notification were made available to the public; And whereas copies of the Gazette containing the said notification were made available to the public on the 19th May, 2022;

and consider the objections and suggestions received from the public in respect of the said draft notification within the said period. has been duly considered by the Government;

Now, therefore, the Central Government, in accordance with sub-rule (3) of rule 5 of the Environment (Protection) Rules, 1986, In exercise of the powers conferred by sections 6, 8 and 25 of the Environment (Protection) Act, 1986 (29 of 1986) and in supersession of the E-Waste (Management) Rules, 2016, except as respects things done or omitted to be done before such supersession, the Central Government hereby makes the following rules, namely:-

CHAPTER

Proposition

1. Short title and commencement. (1) These rules may be called the E-Waste (Management) Rules, 2022. These rules

(2) shall come into force on the 1st day of April, 2023.

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2. Application - These rules shall apply to every manufacturer, producer, refurbisher, dismantler and recycler of electronic equipment (EEE) who is involved in the manufacture, sale, transfer, purchase, refurbishing, dismantling and recycling and processing of e-waste or electrical and electronic equipment listed in Schedule-I, including their components, consumables, articles, parts and spares which make the product operational but shall not apply to -

(a) waste batteries covered under the Battery Waste Management Rules, 2022;

(b) plastic packages covered under the Plastic Waste Management Rules, 2016;

(c) micro enterprise as defined in the Micro, Small and Medium Enterprises Development Act, 2006 (27 of 2006) (service sector); and

(d) the provisions of the Atomic Energy Act, 1962 (33 of 1962) and the rules made thereunder Radioactive waste as covered under and under.

3. Definitions. - (1) In these rules, unless the context otherwise requires, -

(a) “Act” means the Environment (Protection) Act, 1986 (29 of 1986);

(b) 'large consumer' means any entity which has, at any time in the specified financial year, has used at least one thousand units of electrical and electronic equipment listed in and includes e-retailers;

(c) 'business' means the manufacture, production, assembly and import of electrical and electronic equipment listed in Schedule I and the refurbishment, recycling, disposal and remediation of e-waste;

(d) 'component' means any of the parts and components of an assembly or combination of which a manufactured product is composed and into which it may be reassembled and includes any accessory or connection to another component;

(e) 'consumable' means an article which is involved in or required for the functioning of a manufacturing process or electrical and electronic equipment and may or may not form part of the final products and goods. Articles which are substantially or wholly consumed during a manufacturing process shall be deemed to be consumable;

(f) “dismantler” means any person or organisation engaged in dismantling of used electrical and electronic equipment into its components and having authorisation from the concerned State Pollution Control Board or Pollution Control Committee in accordance with the guidelines of the Central Pollution Control Board;

(g) 'disposal and treatment' means any operation which does not lead to or cause recycling, recovery or reuse and includes physiochemical or biological treatment, incineration and disposal or disposal in a secure landfill;

(h) 'life expectancy' of a product means the time when the product is intended to be discarded by its user; goes;

(i) 'environmentally sound management of e-waste' means taking all steps required to ensure that e-waste and waste are managed in a manner that will prevent any adverse effects on health and the environment that may result from such e-waste or waste;

(j) 'electric and electronic equipment' means equipment which is functional and dependent on electric current or electromagnetic field, and also equipment for the generation, transfer and measurement of electricity;

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(k) 'shop seller' means a person or company or business entity who uses electronic network such as internet, social media, telephone or any other media for selling his goods;

(l) Solar photovoltaics from 'e-waste' Electrical and electronic equipment, including modules or panels or cells, which have been discarded in whole or in part as waste and garbage, as well as those rejected and discarded from manufacturing, refurbishment and repair processes;

(m) 'Extended Manufacturer Responsibility' means the responsibility and accountability of any manufacturer and producer of electrical or electronic equipment and appliances as given in Schedule-I to ensure environmentally sound management of such waste only through registered recyclers of e-waste to meet the recycling targets as per Schedule-III and Schedule-IV;

(n) "facility" means any place where processes related to collection, reception, storage, segregation, refurbishment, recycling, disposal and treatment of e-waste are carried out;

(o) 'historical e-waste' means e-waste generated from electrical and electronic equipment and appliances specified in Schedule-I, which was available on the date of commencement and force of these rules;

(p) “manufacturer” means a person or entity or company as defined in the Companies Act, 2013 (18 of 2013) or a factory as defined in the Factories Act, 1948 (63 of 1948) or small and medium enterprises as defined in the Micro, Small and Medium Enterprises Development Act, 2006 (27 of 2006), which has facilities for manufacturing electrical and electronic equipment specified in Schedule-I;

(q) 'unclaimed products' means unbranded or assembled electrical and electronic equipment specified in Schedule I or produced by a company which has ceased its operations;

(r) 'part' means any element of a sub-assembly or assembly consisting of its components, parts or accessories which are not normally serviceable by themselves, and are not amenable to further disassembly for maintenance purposes. A part may be a component, a spare or an accessory;

(s) 'Portal' means the online system developed by the Central Pollution Control Board for the purposes of these rules; means;

(t) 'manufacturer' means any person or entity who—

(i) manufactures and offers for sale electrical and electronic equipment and their components or consumables or parts or spare parts under its own brand; or

(ii) offers for sale, under its own brand, assembled electrical and electronic equipment and its components or consumables or parts or components produced by other manufacturers or suppliers; or

(iii) imported electrical and electronic equipment and their components or consumables, parts or spares or offers parts for sale; or

(iv) who imports used electrical and electronic equipment;

Used for dealer, retailer, e-retailer, etc. regardless of the selling technique.

(u) 'recycler' means any person or organization engaged in the recycling and reprocessing of waste electrical and electronic equipment or assemblies or components or parts thereof for the recovery of precious, semi-precious metals including rare earth elements and other useful recoverable materials thereby;

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Secondary sources can be strengthened and facilities can be used as per the guidelines of Central Pollution Control Board made in this regard;

(v) 'Refurbisher' means a person who repairs or assembles electrical and electronic equipment listed in Schedule I; Such goods are meant to be available in the market for a person or entity to use and sell, extending their working life beyond their originally intended life;

(w) “Schedule” means a schedule appended to these rules;

(x) “parts” means a part or sub-assembly or assembly intended to replace a similar or identical part or sub-assembly or assembly, including a component or an accessory; and

(m) through registry recycling by the producer in the absence of 'Extended Manufacturer Responsibility' from 'Target' means the quantity of e-waste to be recycled;

(2) Words and expressions used herein and not defined but defined in the Act shall have the meanings respectively assigned to them in that Act.

CHAPTER

Expanded Public Liability Framework

4. Registry.- (1) Entities shall be registered on the Portal in any of the following categories, namely:-

(a) the manufacturer;

(b) producer;

(c) Refervibir; or

(d) recyclability;

(2) If a unit falls under more than one category under sub-rule (1), the unit shall be classified under those categories. Will register separately.

(3) No institution or entity referred to and specified in sub-rule (1) shall carry on any business without registration.

(4) The entities registered under sub-rule (1) shall not deal or carry on any business with any unregistered manufacturer, producer, recycler and refurbisher.

Where any registered entity furnishes false information or wilfully omits information which is necessary and important to be provided/furnished under these rules or in case of any irregularity, for obtaining registration or return or report or information, the registration of such entity may be cancelled by the Central Pollution Control Board for a period up to three years after giving an opportunity of being heard and in addition, environmental compensation charges may also be imposed in such cases as per rule 22.

(6) The Central Pollution Control Board may, with the approval of the Steering Committee, levy such registration fee and annual maintenance charges from the entities seeking registration under these rules, based on the capacity of the waste as may be determined by the Central Pollution Control Board.

Chapter

Eirdajayatva

5. Responsibility of Manufacturers - All manufacturers shall, - (1) register on the Portal;

(2) collect and ensure recycling or disposal and treatment of e-waste and other waste generated during the manufacture of any electrical and electronic equipment;

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File annual and quarterly returns in the prescribed format on the portal, on or before the end of month (3) following the quarter or year, as the case may be, to which the return relates.

6. Manufacturer's responsibility. - Manufacturers of electrical and electronic equipment listed in Schedule I shall be responsible for -

(1) To register on the portal;

(2) Maternal Responsibility Targets detailed as per Schedule-III and Schedule-IV through the portal to acquire and implement them;

Provided that the extended producer responsibility under the provisions of the erstwhile e-Waste (Management) Rules, 2016 The producer having the plan shall migrate under these rules as per the procedure prescribed by the Central Pollution Control Board with the approval of the Steering Committee.

(3) To create awareness through media, publications, advertisements, posters or any other means of communication for water;

be Annual and quarterly returns in the form or formats laid down on the portal of the Central Pollution Control Board (4) to filed on or before the end of the month following the quarter or year, as the case may be, to which the return relates.

7. Responsibility of Renewer - All Renewers shall, -

(1) Registration will have to be done on the portal;

(2) Collection of e-waste and waste generated during the process of refurbishment and disposal of waste and waste handing over the same to a registered recycler and uploading the information on the portal;

(3) ensure that the refurbished equipment is in accordance with the mandatory registration scheme of the Ministry of Electronics and Information Technology and the standards of the Bureau of Indian Standards formulated for the purpose;

Filing annual and quarterly returns in the format laid down on the Portal, on or before the end of (4) months following the quarter or year, as the case may be, to which the return relates.

8. Responsibility of Large Consumers (Bulk JUMSA) – Large consumers of electrical and electronic equipment listed in Schedule-I shall ensure that the e-waste and waste generated by them is handed over only to registered producers, refurbishers or recyclers.

9. Responsibility of the Recycler – All recyclers must –

(1) Registration will have to be done on the portal;

(2) In this regard, ensure that the facility and recycling processes are in accordance with the standards or guidelines specified by the Central Pollution Control Board from time to time;

(3) ensuring that parts or materials not recycled at its facility are sent to the relevant registered recyclers;

(4) Ensuring that residues generated during the recycling process are disposed of and treated at an authorized treatment storage disposal facility;

(5) Maintain records of waste collected, shredded, recycled and sent to registered recyclers and to make available all records for verification/audit as and when required;

the To file annual and quarterly returns in the form or formats laid down on the Portal on or before the end of the month (6) following quarter or year, as the case may be, to which the return relates.

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not Accepting for recycling waste electrical and electronic equipment or components not listed in Schedule-I (7) provided they do contain any radioactive material and uploading the same on the portal;

(8) Creating awareness through media, publications, advertisements, posters or such other means of communication.

(9) Uploading accounts and information about any non-recyclable e-waste and waste or any quantity that has not been recycled and disposed of;

(10) Taking help of dismantling for recycling purposes:

It is the responsibility of the recycler to ensure proper material flow from these dismantlers. The dismantler will only give the dismantled material to registered recyclers and maintain EC records.

10. Responsibility of State Government or Union Territory - (1) The Department of Industries in the State and Union Territory, as the case may be, or any other Government agency authorized in this behalf by the State Government or Union Territory, shall ensure the identification or allotment of industrial space or beds for disposal and recycling of e-waste in existing and upcoming industrial parks, estates and industrial clusters; (2) The Labour

Department in the State and Union Territory, or any other Government agency authorized in this behalf by the State Government or Union Territory, as the case may be, shall perform the following functions: -

a) ensure recognition and registration of workers involved in generation and recycling;

b) assist in the formation of groups of such workers to facilitate the establishment of dismantling facilities;

c) Undertake industrial skill development activities for workers involved in dismantling, remanufacturing and recycling to do;

d) Annual monitoring and monitoring of the safety and health of workers involved in dismantling, disposal and recycling to mobilize;

CHAPTER IV

11. Procedure for storing e-waste - Every producer, generator, refurbisher and recycler may store e-waste for a period not exceeding one hundred and eighty days and shall maintain records of the sale, transfer and storage of e-waste and make these records available for inspection.

The relevant rules and/or guidelines in force for the time being will be as follows:

Provided that the Central Pollution Control Board may extend this period up to three hundred and sixty-five days if the e-waste needs to be specially stored for development of a process for its recycling or reuse.

CHAPTER V

12. Management of solar photovoltaic modules or panels or cells - (1) These are the provisions of this chapter (2) Every manufacturer and producer of solar photovoltaic modules or

panels or cells shall:

(i) facilitate registration on the portal;

(ii) storage of solar photo-voltaic modules or panels or waste generated therefrom till the year 2034-2035 in accordance with the guidelines of the Central Pollution Control Board in this regard;

(iii) placed on the portal on or before the end of the year to which the return relates, up to the year 2034-2035 filing of annual return in the form;

(iv) ensure that the processing of waste other than solar photovoltaic modules or panels or cells is done in accordance with the relevant applicable rules or guidelines for the time being in force;

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(v) ensure that the list of solar photovoltaic modules or panels or cells is clearly displayed on the portal will go;

(vi) adherence to the standard operating procedures and guidelines issued by the Central Pollution Control Board in this regard. to do;

(3) Recycling of solar photovoltaic modules or panels or cells for recovery of materials specified by the Central Pollution Control Board shall be made mandatory;

CHAPTER VI

13. Modalities of Extended Producer Responsibility Regime – (1) All producers shall be required to pay the premiums specified in Schedule-III and Schedule-III. IV, they may also take the help of third party organizations such as producer responsibility organizations, collection centers, dealers, etc. Provided that the extended manufacturer responsibility obligation shall rest solely with the producer.

(2) In this regard, the Extended Manufacturer Responsibility for each product shall be determined based on the information provided by the producers on the portal and the life span of the individual product as specified by the Central Pollution Control Board and the targets specified in Schedule III and Schedule IV. (i) The manufacturer shall fulfil its Extended Manufacturer Responsibility duties and obligations only through online purchase of Extended Manufacturer Responsibility Certificate from registered recyclers (3) and file quarterly returns.
After doing this he will submit it online.

(ii) The details provided by the producers and the registered group will be cross-checked.

(iii) In case of any difference, the manufacturer shall be required to meet the extended manufacturer liability obligations and duties at the lower level (iv) The certificate shall be issued by the Central Pollution Control Board or any authority authorized by the Central Pollution Control Board in this behalf.
Others will be subject to environmental audit by the authority.

14. Issuance of Extended Producer Responsibility Certificate - (1) Recycling (i) In this regard, the Central Pollution Control Board shall generate an Extended Manufacturer Responsibility Certificate in the form laid down in favour of a registered recycler through the portal.

(a) The eligible quantity for the detailed birth certificate shall be calculated by the following formula (ii) ie

$$* QEPR = Qp \times Cf$$

*QEPR is the quantity eligible for generation of certificate, Qp is the quantity of final product and CF (Cf) is the conversion factor (the amount of input required to produce one unit of output.)

The conversion factor Cf for each end product will be determined by the Central Pollution Control Board with the approval of the Steering Committee.

(iii) The validity of the Extended Producer Liability Certificate shall be two years from the end of the financial year in which it is made and the certificate shall automatically expire on expiry of the time limit or period unless terminated earlier as per the provisions of these rules.

Each Extended Manufacturer Responsibility Certificate shall have a unique number consisting of the year of production, last (iv) code of the product, recycling code and a unique code and Extended Manufacturer Responsibility Certificates shall be in denominations of 100, 200, 500 and 1000 kg or such other value categories as may be prescribed by the Central Pollution Control Board with the approval of the Steering Committee.

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(2) Refurbishment - (i) Refurbishment of e-waste shall also be permitted and the refurbisher shall be required to register on the portal and based on the data provided, a renewal certificate shall be generated in favour of the registered refurbisher in the prescribed format.

of On production of refurbishment certificates purchased from registered refurbishers, the Extended Manufacturers Responsibility the producers (ii) shall be deferred for the relevant quantity of e-waste and waste for a period specified by the Central Pollution Control Board and shall be added to the Extended Manufacturers Responsibility of the manufacturer on expiry of the extended life of the refurbished product.

(iii) To encourage refurbishment, only 75 per cent of the deferred quantity will be added to the Extended Manufacturer Responsibility of the manufacturer for recycling on expiry of the extended life of the refurbished product.

Example: - If a manufacturer has an Extended Manufacturer Responsibility obligation of 100 tonnes in the year 2023-2024 and he purchases 60 tonnes of Recycling Certificates and 40 tonnes of Renewal Certificates, and the commodity concerned has an extended life of five years due to refurbishment.

In this case, 60 tonnes of the Extended Producer Obligation of the producer will be received in the year 2023-2024 itself and 40 tonnes i.e. 75% of 30 tonnes will be received by the Extended Producer Obligation of the producer for the year 2028-2029 for that item.
Will be added to the responsibility.

only (iv) The Extended Manufacturer Responsibility will be terminated only after the expiry of the life through a registered recycler and after production of Extended Manufacturer Responsibility Certificate and not Renewal Certificate
by letter.

15. Transactions in Extended Producer Responsibility Certificates.- (1) A producer may purchase Extended Producer Responsibility Certificates against his Extended Producer Responsibility of the current year (Year Y) along with any outstanding and outstanding liability of previous years and limited to 5 per cent of the current year liability.

(2) Extended Producer Responsibility obligations are proportionately extended by producers on a quarterly basis.
Must purchase and complete a Parent Responsibility Certificate.

As soon as the manufacturer purchases the Extended Manufacturer Responsibility Certificate, it will automatically be adjusted against his liability (3) and the priority in adjustment will be given to the earlier liability only and the Extended Manufacturer Responsibility Certificate so adjusted will automatically lapse and stand cancelled.

As soon as a manufacturer purchases a renewal certificate, his Extended Producer Responsibility liability will be automatically suspended for the relevant quantity of the product for a period as may be determined by the Central Pollution Control Board.

The availability, requirement and other details of Extended Manufacturer Responsibility (5) Certificate and renewal certificate for each producer or recycler or refurbisher will be made available on the portal.

(6) All transactions under these regulations shall be recorded and submitted on the portal by the manufacturer or recycler while filing the quarterly return.

CHAPTER VII

Reduction and reduction of use of hazardous substances in the manufacture of electrical and electronic equipment and their components or consumables or parts or spares. - (1)

16. Every manufacturer of electrical and electronic equipment and their components or consumables or parts or spares listed in Schedule-I shall ensure that new electrical and electronic equipment and their components or consumables or parts or spares do not contain lead, mercury, calcium, hexavalent

Excludes chromium, polybrominated biphenyls which are present in equivalent materials for lead in the range of 0.1 percent by weight

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beyond the maximum concentration value are mercury, hexavalent chromium, polybrominated bisphenol and polybrominated
The concentration for depositional ethers and cadmium is 0.01 percent by weight in the corresponding material.

1st Essential components (2) or consumables or parts or spare parts for electrical and electronic equipment placed on the market before the day of May, 2014 may be exempted from the provisions of sub-rule (1), provided that there is a shortage or unavailability of corresponding parts for hazardous substances.

(3) The applications listed in Schedule-2 shall be exempted from the provisions of sub-rule (1).

Every manufacturer of applications listed in Schedule-2 shall ensure that the limits for hazardous (4) substances given in Schedule-2 are complied with.

or Each manufacturer shall provide (5) detailed information about the components of the equipment and their components or consumables parts, as well as a declaration of conformity to the reduction of hazardous substances provisions in the product user documentation.

(6) The import or placement in the market of new electrical and electronic equipment shall be permitted only to persons who comply with the provisions of sub-rules (1) and (4).

(7) Manufacture and supply of electrical and electronic equipment used for defence and other similar strategic applications shall be excluded from the provisions of sub-rule (1).

(8) Every producer shall provide information on compliance with the provisions of sub-rule (1) and such information shall be self-
The declaration shall be in the context of.

(9) The manufacturer shall use technological procedures that will make the final product recyclable;

(10) The manufacturer shall ensure that components or parts made by different manufacturers are compatible with each other to reduce the amount of e-waste or waste.

(11) The Central Pollution Control Board shall conduct and carry out random sampling of electrical and electronic equipment put on the market to monitor and verify compliance with the provisions of reduction of hazardous substances and the cost of sampling and testing shall be borne by the manufacturer and random sampling in this regard shall be as per the guidelines of the Central Pollution Control Board.

(12) If the product does not comply with the provisions for reduction of hazardous substances, the producer shall take corrective measures to bring the product into compliance within a reasonable period as per the guidelines of the Central Pollution Control Board and withdraw or recall the product from the market. (13) The Central Pollution Control Board shall publish the methods

of sampling and analysis of hazardous substances listed in sub-rule (1) in respect of the commodities listed in Schedule-I and Schedule-II and shall It will also list the laboratories for the purpose.

CHAPTER VIII

Duties of

Miscellaneous Officers - Subject to the other provisions of these rules, the officers shall perform the duties specified in Schedule-V. 17.

18. Annual Report - The Central Pollution Control Board shall submit an annual report to the Ministry of Environment, Forest and Climate Change regarding the status of implementation of e-waste management rules with quantitative and qualitative analysis along with its recommendations within one month of the end of the financial year.

19. Transportation of e-waste - The provisions under the Hazardous and Other Wastes (Management and Handling and Transboundary Movement) Rules, 2016 shall be followed for transportation of waste and waste generated from manufacturing or recycling to the treatment, storage and disposal facility for final disposal and treatment.

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20. Reporting of Accidents - Wherever an accident occurs at an e-waste and waste processing facility or during the transportation of e-waste, the manufacturer, producer, refurbisher, transporter, dismantler, or recycler, as the case may be, shall immediately report the accident to the concerned State Pollution Control Board through telephone and email.

21. Appeal.- (1) Any person aggrieved by the suspension or cancellation of registration or refusal of registration or renewal thereof passed by the Central Pollution Control Board may, within a period of thirty days from the date of communication of the order, prefer an appeal to the Additional Secretary or Joint Secretary, Ministry of Environment, Forest and Climate Change, duly nominated by the Central Government in this behalf.

(2) The Appellate Authority may entertain the appeal after the expiry of the said period of thirty days if it is satisfied that the appellant was prevented by sufficient cause from filing the appeal in time.

22. Environmental compensation.- (1) The Central Pollution Control Board shall lay down guidelines for levy and collection of environmental compensation on any entity in case of contravention of any provision of these rules and guidelines issued hereunder and such guidelines shall be in accordance with these rules and approved by the Ministry of Environment, Forest and Climate Change.

on The Central Pollution Control Board shall also lay down guidelines for imposition and collection of environmental compensation producers in case of non-fulfillment of obligations laid down in these rules and in case of transactions or use of falsely extended (2) Producer Responsibility Certificate and such guidelines shall be in accordance with these rules and approved by the Ministry of Climate Change.

(3) Environmental compensation is provided to unregistered producers, manufacturers, refurbishers, recyclers and any
It shall also be imposed on any entity which aids, abets or encourages the contravention of these rules.

(i) The payment of environmental compensation shall not relieve the producers and manufacturers from the Extended Producer Responsibility (4) prescribed in these rules and the unfulfilled Extended Producer Responsibility obligation for any foreign year shall be carried forward to the next year and so on for a period of three years.

If the Extended Producer Responsibility Obligation deficiency is addressed after one year, (ii) 85 percent of the environmental compensation levied will be refunded to the producers and manufacturers, (iii) if the Extended Producer

Responsibility Obligation deficiency is addressed after two years, 60 percent of the environmental compensation levied will be refunded to the producers and manufacturers, and (iv) if the Extended Producer Responsibility Obligation deficiency is addressed after three years, 30 percent of the environmental compensation levied will be refunded to the producers and manufacturers. After this, no environmental compensation or damages will be refunded to the manufacturer or producer.

(5) Excess production of Extended Producers' Responsibility Certificates by the recycler due to incorrect information shall result in cancellation of registration and imposition of environmental compensation which shall not be refundable and repeat offence, three or more times violation of these rules shall also result in permanent cancellation of registration besides environmental compensation fee.

(i) The funds collected under environmental compensation shall be maintained by the Central Pollution Control Board in a separate account (6) and the funds collected shall be utilized for disposal of collected, uncollected, critical, unclaimed e-waste and non-recyclable or non-end of e-waste on which environmental compensation is levied, financial assistance to local bodies for research and development, promotion of recyclers, management of waste management projects and other items as decided by the Committee.

of (ii) The quantum and heads for utilization of funds will be decided by the Steering Committee with the approval of the Ministry Environment, Forest and Climate Change.

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23. Prosecution. - Any person who provides false information required under these rules for obtaining Extended Producer Responsibility Certificate, uses false or forged Extended Producer Responsibility Certificate in any manner or knowingly contravenes the directions given under these rules or fails to cooperate in the verification and audit proceedings shall be liable to be prosecuted under section 15 of the Act, 1986 and this prosecution shall be in addition to the environmental compensation imposed under rule 22.

24. Verification and Audit - The Central Pollution Control Board may, itself or through any designated agency, verify the compliance of the producers, manufacturers, refurbishers, dismantlers and recyclers with these regulations by means of random inspections and periodic audits as it may deem fit and just and take action against the contravention of the provisions of these regulations as per rule 22.

25. Steering Committee - (1) Chairman, Central Pollution Control Board to oversee the overall implementation of these rules
There shall be a Steering Committee headed by the Chairman. The Steering Committee shall consist of the following members besides the Chairman:

a) a representative of the Ministry of Environment, Forest and Climate Change, Government of India;

b) One representative of the Ministry of Electronics and Information Technology, Government of India;

c) A representative of the Ministry of New and Renewable Energy;

d) a representative of the Ministry of Housing and Urban Affairs;

e) Not more than two representatives of the Electrical and Electronic Equipment Producers and Manufacturers Association;

f) a maximum of two representatives of e-registered recycling associations;

g) A member of the State Pollution Control Board or Pollution Control Committee co-opted by the Chairman of the Steering Committee
Representative;

h) Head of the concerned Division of the Central Pollution Control Board - Member Convener.

(2) The Steering Committee shall be responsible for the overall implementation, monitoring and supervision of these rules and shall also decide on disputes, differences and representations that may arise from time to time, and shall refer any important issue relating to these rules to the Ministry of Environment, Forest and Climate Change.

(3) The Steering Committee may, with the approval of the Central Government, review and amend the guidelines given in Schedule-I or the targets of extended manufacturer responsibility or addition of new electrical and electronic equipment, taking into account technological advancements and other factors.

(4) The Steering Committee shall take such measures as it may consider necessary for the proper implementation of the provisions of these rules.

Schedule-I

[See rules 2, 3(b), 3(c), 3(d), 3(o), 3(p), 3(q), 3(v), 6, 8, 10(7), 16(13)]

The categories of electrical and electronic equipment including their components, consumables, parts and spares covered by the rules.

Number	Categories of electrical and electronic equipment	Electrical and Electronic Equipment Code
i.	Information Technology and Telecommunication	
	Equipment: Centralized Data Processing: Mainframe,	ITEW1
	German Computer Personal Computing: Personal Computer (Central with input and output devices) processing unit)	ITEW2
	Personal computing: Laptop computers (central computers with input and output devices) processing unit)	ITEW3

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	Personal Computing: Notebook Computers	ITEW4
	Personal Computing: Notepad Computer	ITEW5
	printer with cartridge	ITEW6
	copying device	ITEW7
	Electrical and Electronic Tire Apparatus	ITEW8
	User Administration and Systems	ITEW9
	Propagandist	ITEW10
	Teletexts	ITEW11
	Phone	ITEW12
	free telephone	ITEW13
	wireless telephone	ITEW14
	cellular telephone	ITEW15
	Unstering System	ITEW16
	Products or apparatus for transmitting flags, pictures or other information by telecommunication	ITEW17
	BTS (all components except the tower structure)	ITEW18
	Tablet, iPad	ITEW19
	Fablet	ITEW20
	Stuck nerves	ITEW21
	Rightsa	ITEW22
	GPS	ITEW23
	UPS	ITEW24
	Avantar	ITEW25
	Modem	ITEW26
	electronic data storage device	ITEW27
ii.	Consumer Electricity & Electronics and Photovoltaic Panels:	
	Television sets (based on fast crystal display and fast emitting diode technology) (including base set)	CEEW1
	Daphraj	CEEW2
	Laundry machine	CEEW3
	Air conditioners without centralized air conditioning plants	CEEW4
	Fluorescent and other mercury-containing lamps	CEEW5
	Screen, Electronic Photo Frame, Electronic Display Panel, Mozilla	CEEW6
	radio set	CEEW7
	set top boxes	CEEW8
	video camera	CEEW9

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	Video Recorder	CEEW10
	Hi-Fi Recorder	CEEW11
	Audio Amplifier	CEEW12
	including signals and other technologies for flagging and image distribution by telecommunications Flags or other products for the purpose of recording or reproducing images or equipment.	CEEW13
	Solar panels/cells, solar photovoltaic panels/cells/modules.	CEEW14
	Luminaires/luminaries for fluorescent lamps excluding household luminaires/luminaries	CEEW15
	High intensity discharge lamps, including pressurized sodium lamps and metal halides Lamps included	CEEW16
	low pressure sodium lamp	CEEW17
	Other than filament bulbs, for the purpose of diffusing or controlling light publication or device	CEEW18
	digital camera	CEEW19
iii.	Large and small electrical and electronic equipment	
	Large cooling equipment	LSEEW1
	freezer	LSEEW2
	Other large appliances used for cooling, preserving and storing	LSEEW3
	food Clothes dryers	LSEEW4
	Washing machine	LSEEW5
	Electric Cookers Electric	LSEEW6
	Stoves Electric Hot	LSEEW7
	Plates Microwave,	LSEEW8
	Microwave Oven	LSEEW9
	Other large vessels used for cooking and other processing of food equipment	LSEEW10
	electric heating	LSEEW11
	equipment electric radiator	LSEEW12
	Other large appliances to heat the room, bed, seating furniture	LSEEW13
	Electric fans	LSEEW14
	Other Facing, Exhaust Ventilation and Conditioning Equipment	LSEEW15
	Vacuum Cleaners	LSEEW16
	carpet cleaner	LSEEW17
	Other cleaning tools	LSEEW18
	Used for sewing, weaving, knitting and other processing of textiles Equipment.	LSEEW19
	Irons and other appliances for ironing, mangling and other care of clothes.	LSEEW20
	Grinders, coffee machines and devices for opening or closing containers or packages.	LSEEW21

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	Stomach Detector	LSEEW22
	heating regulator	LSEEW23
	heat heater	LSEEW24
	Automatic dispenser for hot	LSEEW25
	drinks Automatic dispenser for hot or cold bottles or cans	LSEEW26
	Automatic dispenser for solid products	LSEEW27
	Automatic dispenser for money	LSEEW28
	All devices that automatically deliver all types of products Indoor	LSEEW29
	Air Purifiers	LSEEW30
	Hairdryers	LSEEW31
	Electric Shavers	LSEEW32
	Electronic	LSEEW33
	display panels/boards/visual display units under	LSEEW34
iv.	electrics Electrical and electronic equipment (with exceptions for large-scale static industrial	
	equipment)	ETW1
	Ari	ETW2
	Whom I love	EITW3
	For turning, grinding, sanding, grinding, sawing, cutting, shearing, drilling, boring, punching, folding, bending or similar processing of wood, metal and other materials equipment	ETW4
	riveting, nailing or screw parts or for removing rivets, nails, screws or the like Equipment for applications	EATW5
	Tools for welding, soldering or similar use	ETW6
	The delivery of liquid or gaseous substances by spraying, diffusion, dispersion or other means Equipment for other treatments	ETW7
	Tools for mowing or other gardening activities	ETW8
in.	Toys, toys and sports equipment	TLSE W1
	Electric trains or car racing sets	TLSE W2
	handheld video game console	TLSE W3
	video games	TLSE W4
	Computers for walking, diving, running, rowing, etc.	TLSE W5
	Sports equipment, including electrical or electronic devices	TLSE W6
	Coan Slot Machine	TLSE W7
we.	Medical equipment (excluding all implanted and infected products)	
	Radiotherapy equipment and ancillary equipment	MDW1
	Cardiology equipment and accessories	MDW2

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	Dialysis equipment and accessories	MDW3
	Pulmonary ventilators and accessories	MDW4
	Nuclear medicine equipment and accessories	MDW5
	Laboratory equipment and accessories for on-the-go diagnosis	MDW6
	Analyzers and accessories	MDW7
	Ultrasound equipment with magnetic resonance imaging (MRI), positron emission tomography (PET) scanners, computed tomography (CT) scanners, and accessories	MDW8
	Phthalate testing and assistive devices	MDW9
	Other electrical devices/equipment/kits used to prevent, test, detect, monitor, evaluate, review, examine, diagnose, test, treat disease, illness, disorder, pain, infection, injury, trauma, abuse or disability including mobiles, tablets or any other devices having capability of gender selection and their assistive devices	MDW10
vii.	laboratory equipment	
	Equipment	LIW1
	containing gas analytical electrical and electrogenic components	LIW2

Schedule

II [See rules 16(3), 16(4), 16(13)]

Applications which are exempted from the requirements of sub-rule (1) of rule 18	
	substance
1	Single cap (compact) fluorescent lamps shall not contain more than:
1(a)	For general lighting purposes <30 W: 2.5 mg
1(b)	For general lighting purposes ÿ 30W and < 50 W: 3.5 mg
1(c)	For general lighting purposes ÿ 50W and < 150 W: 5 mg
1(d)	For general lighting purposes ÿ 150W: 15 mg
1(e)	For general lighting purposes with circular or square structural shape and tube diameter ÿ17mm : 7mg.
1(f)	For special purposes: 5 mg
2(a)	Double-cap linear fluorescent lamps for general lighting purposes shall contain mercury not more than (Prajat Lamp):
2(b)(1)	Tube diameter with normal lifetime and right-band phosphor <9mm (e.g. T2): 4mg
2(a)(2)	Tube diameter with typical lifetime and chromatic-band phosphor ÿ 9 mm and ÿ 17 mm (e.g. T5): 3 mm
2(a)(3)	A tube diameter and chromatic-band phosphor >17 mm with typical lifetime ÿ 28 grams (e.g. T8): 3.5 grams
2(a)(4)	Tube diameter with typical lifetime and chromatic-band phosphor >28 mm (e.g. T12): 3.5 ml
2(a)(5)	Ultra-band phosphor with long lifetime (ÿ25000 h): 5 milligrams
2(b)	Other fluorescent lamps shall not contain more than the following amounts of mercury (per lamp):

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2(b)(1)	Legionnaire Halophosphate lamps with tube > 28 mm (e.g. T10 and T12): 10 ml
2(b)(2) Non-Leisnaire Halophosphate Lamp (all diameters) : 15mg	
2(b)(3)	Non-League-sized triple-band phosphor lamps with tube diameter > 17 mm (e.g. T9): 15 mm
2(b)(4)	Other general lighting and lamps for special purposes (such as induction lamps): 15mg
3	For special purposes in cold-wave fluorescent lamps and external electrode fluorescent lamps (CCFL and EEFL) For this purpose, the mercury (per lamp) should not exceed:
3(a)	Short length (<500 mm) : 3.5 mg
3(b)	Medium length (>500 mm and <1500 mm) : 5 mg
3(c)	Length (>1500 mm): 13mg
4(a)	Mercury in other low pressure discharge lamps (per lamp): 15mg
4(b)	Mercury in high pressure sodium (vapor) lamps Improved color rendition of Ra>60 for general lighting purposes Lamps with index should not have (per burn) more than the following:
4(b)-IPÿ155W:30mg	
4(ÿ)-II 155W<P <405W:40mg	
4(ÿ)-III P>405W:40mg	
4(c)	Other high pressure sodium (vapor) lamps for general lighting purposes containing mercury (per burner) not more than Should be:
4(ÿ)-I P<155W:25mg	
4(ÿ)-II 155W<P< 405W:30mg	
4(ÿ)-III P>405W:40mg	
4(d)	High Pressure Mercury (Vapor) Lamp (HPMV)
4(e)	Mercury in metal halide lamps (MH)
4(f)	Mercury in other discharge lamps for special purposes not specifically mentioned in the Schedule
5(a)	A little bit of retube cake, manisa
5(b)	Lead in the glass of fluorescent tubes should not exceed 0.2% by weight
6(a)	Steel for machining purposes contains lead as an alloying element and zinc steel contains up to 0.35% lead by weight
6(b)	Lead as an alloying element in aluminium contains up to 0.4% lead by weight
6(c)	copper alloy containing up to 4% lead by weight
7(a)	High melting temperature types of solder contain lead (i.e., lead-based alloys containing contains 85% or more lead)
7(b)	In solder for power, storage and storage array systems, for switching, signaling, transmission and telecommunications Leading the way in network infrastructure tools for network management
7(c)-I	Electrical and electronic components containing lead in glass or ceramic other than dielectric ceramic in capacitors, such as piezoelectric devices, or in glass or ceramic magnetic compounds.
7(c)-II	Lead in dielectric ceramic in capacitor for 125 V AC or 250 V DC or desired rated voltage
7(c)-III Lead in dielectric ceramics in capacitors for rated voltages less than 125 V AC or 250 V DC	
8(a)	Calcium and its compounds in one hot pellet type thermal cut-off

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8(b)	Cadmium and its compounds in electrical contracts
9	Hexavalent chromium carbon steel coil system as anticorrosion agent in avionic refrigerator coil The solution contains up to 0.75% by weight.
9(a)	Refrigerant-containing compressors for heating, ventilation, air conditioning, and refrigeration (HVACR) applications Lead in the oil and bushes for water.
10(a)	Lead used in C-Press compliant pinconnector systems
10(b)	Lead used in other than C-Press compliant pinconnector systems
11	Lead as a coating material for thermal conduction module C-rings
12(a)	Lead in white glasses used for optical applications
12(b)	Calcium and lead in filter glasses and goggles used for reflection standards.
13	Lead soldered with more than two elements for connection between SPs and packages of microprocessors, including Has a lead content of more than 80% and less than 85% lead by weight.
14	Integrated circuits complete a viable electrical connection between the semiconductor die and carrier within the flip chip package. Lead in soldering to do.
15	Lead in linear light lamps with silicone coated tubes
16	Lead halides as resident agents in high intensity discharge (HD) lamps used for professional reprography applications.
17(a)	Diazoprinting, reprography, lithography, keytrap, photochemical and phosphor containing curing processes such as Fluorescent discharge lamps when used as special lamps for SMS((Sr,Ba)2MgSi2O7:Pb) Lead as a catalyst in powder (1% or less by weight)
17(b)	Discharge lamps when used as phosphorous containing sunspots such as BSP (Ba Si2O5:Pb) Lead as a catalyst in fluoro-scent powders (1% or less by weight)
18	Lead containing PbBiSn-Hg and PblnSn-Hg in typical compositions as the main alloy and very compact PbSn-Hg lead as an auxiliary inductor in light bulbs (ESL).
19	The front and rear of a flat fluorescent lamp used for a liquid crystal display (LCD) Lead oxide in the glass used to bond the substrates
20	Printing inks for applying enamel to glass such as borosilicate and soda ash contain lead and calcium
21	Lead in the finishing of fine pitch components other than connectors with pitch of 0.65 mm and less
22	Solder for soldering of subway through hole discoidal and planar array ceramic multilayer capsules in lead
23	Surface conducting electron emitters used in structural elements, especially ceiling and floor tiles LED oxide in display (SED).
24	LED oxide in glass envelope of black light blue lamp
25	To operate for several hours at high volume (noise levels of 125 dB SPL and above) Lead alloy as solder for transducers used in loudspeakers
26	lead bound in crystal glass
27	Used in high-pitched loudspeakers with sound pressure levels of 100 dB(A) and above As electrical or mechanical solder joints to electrical conductors located directly on the voice coil in the transducer Cadjamyam alloy.
28	Lead in soldering materials in mercury-free flat fluorescent lamps (for example, those used for liquid crystal displays, design, or industrial lighting)

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29	Lead in sealed frits used to make window assemblies for Agan and Krypton laser tubes Oxtaod
30	Lead in solder for thin copper wires of 100 micron diameter and low case soldering in power transformers
31	Lead in cermet-based ring potentiometer elements
32	Mercury used as a small sputtering inhibitor in DC plasma displays 30 grams per unit This happens to the contents of the display.
33	Lead in the plating layer of an etch high voltage diode based on a zinc borate glass body
34	Cadmium and cadmium in thick film pastes used on aluminium bonded beryllium oxide Oxtaod
35	Colour converting II-VI LEDs (<10 microgram cd) for use in solid state lighting or display systems cadmium in 2 light-excited areas per square meter.

Schedule

III [See rules 3(m), 6(2), 13(1), 13(2)]

Number	Vi	E-waste recycling target (weight)
(i)	2023 -2024	60% of the quantity of EEE placed on the market in year YX, where 'X' is the average life of the product
(ii)	2024 -2025	60% of the quantity of EEE placed on the market in year YX, where 'X' is the average life of the product
(iii)	2025 -2026	70% of the quantity of EEE placed on the market in year YX, where 'X' is the average life of the product
(iv)	2026 -2027	70% of the quantity of EEE placed on the market in year YX, where 'X' is the average life of the product
(in)	2027 -2028	80% of the quantity of EEE placed on the market in the year YX, where 'X' is the average life of the product
(we)	From 2028 -2029 Aage	80% of the quantity of EEE placed on the market in the year YX, where 'X' is the average life of the product

Ratappan :

* (1) The e-waste recycling target will be reviewed and may be increased after the end of the year 2028-2029.

(2) ** Importers of used electrical and electronic equipment after end of life
There shall be 100% extended producer responsibility for imported material if it is not re-exported.

(3) The e-waste recycling targets shall not apply to waste generated from solar photovoltaic modules or panels or cells.

Schedule IV

[See rules 3(m), 6(2), 13(1), 13(2)]

Extended Producer Responsibility Target for producers who have recently commenced sales operations, i.e. the number of years of sales operation is less than the average life of their products as mentioned in the guidelines issued by the Central Pollution Control Board from time to time.

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Number	Vi	E-waste Recycling Target (Weight)
(i)	2023-2024	JBI 2021-22 sales figures 15%
(ii)	2024-2025	20% of the sales figure for FY 2022-23
(iii)	20% of the previous year's sales figures for the next two years from 2025-2026	

Ratappan: (1) Once the above In the guidelines issued by the Central Control Board for Sale of Kewas mentioned period equals the average life of the product, the liability shall be as their Javsttarat Janamata Eirdajayatva Of per Schedule-III.

E-waste recycling (2) Goal Solar Photovoltaic Module Come Panel Come from the cell produced These will not be for waste.

Schedule-V

[See rule (17)]

List of authorities and corresponding duties

Number	Authority	duties accordingly
1.	Central Pollution Control Board	(1) Operating and maintaining the Extended Producer Responsibility Portal and monitoring Extended Producer Responsibility compliance. (2) Coordination with State Pollution Control Boards. (3) To formulate and issue guidelines and standard operating procedures for collection, storage, transportation, segregation, refurbishment, regeneration, recycling and disposal of e-waste from time to time under these rules and also to issue necessary forms/returns for implementation of these rules. (4) To conduct random checks to ascertain compliance with e-waste regulations and to assist Customs/State Government or any other authority(ies). (5) Documentation, compilation of data on e-waste and uploading it on the websites of Central Pollution Control Board. (6) To take action against the violation of these rules. (7) Organise training programmes for capacity building including for officials of State Pollution Control Boards and urban local bodies. (8) To organize awareness programmes on e-waste management, RE/CE label, method to make consumers responsible for use and safe disposal of the product. (9) Integrating all stakeholders into a centralized digital system. (10) Submission of Warwick Report to the Ministry. (11) Enforcement of provisions regarding reduction of the use of hazardous substances in the manufacture of electrical and electronic equipment. (12) Interacting with the IT industry to reduce hazardous substances. (13) To set and revise from time to time targets for compliance with the reduction of the use of hazardous substances in the manufacture of electrical and electronic equipment. (14) Ensuring Restriction of Hazardous Substances (RoHS) compliance and certification through an accredited laboratory and its mandatory testing. (15) To perform any other functions as may be delegated by the Ministry from time to time under these rules.

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2.	State Pollution Control Board or Union Territories Pollution Control Committees of	(1) Inventorying of e-waste. (2) Monitoring and compliance with the Extended Producer Responsibility as directed by the Central Pollution Control Board. (3) Conduct random inspections of recycling and refurbishment and monitor recycling capacity utilization. (4) Implement programs to encourage environmentally sound flag recycling. (5) Any person delegated by the Ministry/Central Pollution Control Board under these rules To do other work.
3.	Local bodies (urban and rural) Of Eirdajayatva.	(1) Ensure that e-waste, if found mixed with municipal solid waste, is properly segregated, collected and channelled to a registered recycler or refrigerant. (2) Ensuring that e-waste related to abandoned products is collected and channeled to a registered recycler or refiller. (3) Facilitate e-waste collection, segregation and disposal system. (4) Organise training sessions to build the capacity of urban and rural local bodies.
4.	Indian Responsibilities of the Port Authority under the Ports Act, 1908 (15 of 1908) and the Customs Authority under the Customs Act, 1962 (52 of 1962).	(1) Verify import or export in respect of manufacturer liability extended under these rules. (2) To report any illegal traffic to the Central Pollution Control Board for necessary action. (3) To take action against the importer for violations under the Indian Ports Act, 1908/Customs Act, 1962.
5.	Bureau of Indian Standards/Electrogen Responsibilities of the Ministry of IT and Information Technology	Issuing standards for refurbished products. The Bureau of Indian Standards/Ministry of Electronics and Information Technology will also develop guidelines for refurbishers regarding the Compulsory Registration Scheme (CRS).

[F. No. 12/136/2021-HSMD]

Naresh Pal Gangwar, Additional Secretary

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MINISTRY OF ENVIRONMENT, FOREST AND CLIMATE CHANGE

NOTIFICATION

New Delhi, the 2nd November 2022

G.S.R. 801(E).—Whereas the draft rules, namely the E-Waste (Management) Rules, 2022 were published by the Government of India in the Ministry of Environment, Forest and Climate Change, *vide* notification number S.O. 360 (E), dated the 19th May, 2022 in the Gazette of India, Extraordinary, Part II, section 3, sub-section (i), inviting objections and suggestions from all persons likely to be affected thereby, before the expiry of the period of sixty days from the date on which copies of the Gazette containing the said notification were made available to the public;

AND WHEREAS, the copies of the Gazette containing the said notification were made available to the public on the 19th day of May, 2022;

AND WHEREAS, the objections and suggestions received from the public in respect of the said draft notification within the said period have been duly considered by the Central Government;

NOW, THEREFORE, in exercise of the powers conferred by sections 6, 8 and 25 of the Environment (Protection) Act, 1986 (29 of 1986) read with sub-rule (3) of rule 5 of the Environment (Protection) Rules, 1986, and in supersession of the E-waste (Management) Rules, 2016, except as respects things done or omitted to be done before such supersession, the Central Government hereby makes the following rules, namely: -

CHAPTER I

PRELIMINARY

1. Short title and commencement. - (1) These rules may be called the E-Waste (Management) Rules, 2022.

(2) They shall come into force from the 1st day of April, 2023.

2. Application. - These rules shall apply to every manufacturer, producer refurbisher, dismantler and recycler involved in manufacture, sale, transfer, purchase, refurbishing, dismantling, recycling and processing of e-waste or electrical and electronic equipment listed in Schedule **I,** including their components, consumables, parts and spares which make the product operational but shall not apply to

(a) waste batteries as covered under the Battery Waste Management Rules, 2022;

(b) packaging plastics as covered under the Plastic Waste Management Rules, 2016;

(c) micro enterprise as defined in the Micro, Small and Medium Enterprises Development Act, 2006 (27 of 2006); and

(d) radio-active wastes as covered under the provisions of the Atomic Energy Act, 1962 (33 of 1962) and rules made there under.

3. Definitions. (1) In these rules, unless the context otherwise requires, -

(a) 'Act' means the Environment (Protection) Act, 1986 (29 of 1986);

(b) 'bulk consumer' means any entity which has used at least one thousand units of electrical and electronic equipment listed in Schedule I, at any point of time in the particular Financial Year and includes e-retailer;

(c) 'business' means manufacturing, production, assembling and import of electrical and electronic equipment as listed in Schedule I and refurbishing, recycling, disposal and treatment of e-waste;

(d) 'component' means one of the parts of a sub-assembly or assembly of which a manufactured product is made up of and into which it may be resolved and includes an accessory or attachment to another component;

(e) 'consumables' means an item, which participates in or is required for a manufacturing process or for functioning of the electrical and electronic equipment and may or may not form part of

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end-product and Items which are substantially or totally consumed during a manufacturing process shall bedeemed to be consumables;

(f) 'dismantler' means any person or entity engaged in dismantling of used electrical and electronic equipment into their components and having authorisation from concerned State Pollution Control Board or Pollution Control Committee as per the guidelines of the Central Pollution Control Board;

(g) 'disposal and treatment' means any operation which does not lead to recycling, recovery or reuse and includes physicochemical or biological treatment, incineration and deposition in secured landfill;

(h) ‘end-of-life’ of the product means the time when the product is intended to be discarded by the user;

(i) 'environmentally sound management of e-waste' means taking all steps required to ensure that e-waste is managed in a manner which shall protect health and environment against any adverse effects, which may result from such e-waste;

(j) 'electrical and electronic equipment' means equipment which are dependent on electric current or electro-magnetic field in order to become functional and also the equipment for the generation, transfer and measurements of the electricity;

(k) ‘e-retailer’ means an individual or company or business entity that uses an electronic network such as internet, social media, telephone or any other media, to sell its goods;

(l) 'e-waste' means electrical and electronic equipment, including solar photo-voltaic modules or panels or cells, whole or in part discarded as waste, as well as rejects from manufacturing, refurbishment and repair processes;

(m) ‘extended producer responsibility’ means responsibility of any producer of electrical or electronic equipment as given in Schedule-I for meeting recycling targets as per Schedule-III and Schedule-IV, only through registered recyclers of e-waste to ensure environmentally sound management of such waste;

(n) 'facility' means any location wherein the process incidental to the collection, reception, storage, segregation, refurbishing, recycling, disposal and treatment of e-waste are carried out;

(o) ‘historical e-waste’ means e-waste generated from electrical and electronic equipment as specified in Schedule-I which was available on the date from which these rules come into force;

(p) ‘manufacturer’ means a person or an entity or a company as defined in the Companies Act, 2013 (18 of 2013) or a factory as defined in the Factories Act, 1948 (63 of 1948) or Small and Medium Enterprises as defined in the Micro, Small and Medium Enterprises Development Act, 2006 (27 of 2006), which has facilities for manufacture of electrical and electronic equipment as specified in Schedule-I;

(q) ‘orphaned products’ means non-branded or assembled electrical and electronic equipment as specified in Schedule-I or those produced by a company which has closed its operations;

(r) ‘part’ means an element of a sub-assembly or assembly including its component, spares or accessory not normally useful by itself and not amenable to further disassembly for maintenance purposes;

(s) ‘portal’ means the online system developed by the Central Pollution Control Board for the purposes of these rules;

(t) ‘producer’ means any person or entity who, -

(i) manufactures and offers to sell electrical and electronic equipment and their components or consumables or parts or spares under its own brand; or

(ii) offers to sell under its own brand, assembled electrical and electronic equipment and their components or consumables or parts or spares produced by other manufacturers or suppliers; or

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(iii) offers to sell imported electrical and electronic equipment and their components or consumables or parts or spares; or

(iv) who imports used electrical and electronic equipment;

irrespective of the selling technique used such as dealer, retailer, e-retailer, etc.;

(u) 'recycler' means any person or entity who is engaged in recycling and reprocessing of waste electrical and electronic equipment or assemblies or their components or their parts for recovery of precious, semi-precious metals including rare earth elements and other useful recoverable materials to strengthened the secondary sourced materials and having facilities as elaborated in the guidelines of the Central Pollution Control Board made in this regard;

(v) 'refurbisher' means any person or entity repairing or assembling used electrical and electronic equipment as listed in Schedule-I for extending its working life over its originally intended life and for same use as originally intended, and selling the same in the market;

(w) 'Schedule' means the Schedule appended to these rules;

(x) 'spares' means a part or a sub-assembly or assembly for substitution which is ready to replace an identical or similar part or sub-assembly or assemblyincluding a component or an accessory; and

(y) 'target' means the quantity of e-waste to be recycled through registered recycler by the producer in fulfilment of extended producer responsibility.

(2) Words and expressions used in these rules and not defined but defined in the Act shall have the same meanings as respectively, as assigned to them in the Act.

CHAPTER II

Extended Producer Responsibility Framework

4. Registration. - (1)The entities shall register on the portal in any of the following category, namely: -

(a) manufacturer;

(b) producer;

(c) refurbisher; or

(d) recycle.

(2) In case any entity falls in more than one categories under sub-rule (1), then the entity shall register under those categories separately.

(3) No entity referred in sub-rule (1) shall carry out any business without registration.

(4) The entities registered under sub-rule (1) shall not deal with any unregistered manufacturer, producer, recycler and refurbisher.

(5) Where any registered entity furnishes false information or willfully conceals information for getting registration or return or report or information required to be provided or furnished under these rules or in case of any irregularity, the registration of such entity may be revoked by the Central Pollution Control Board for a period up to three-years after giving an opportunity to be heard and in addition, environmental compensation charges may also be levied as per rule 22 in such cases.

(6) The Central Pollution Control Board may charge such registration fee and annual maintenance charges from the entities seeking registration under these rules based on capacity of e-waste generated or recycled or handled by them as laid down by the Central Pollution Control Board with the approval of the Steering Committee.

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CHAPTER III

RESPONSIBILITIES

5. Responsibilities of the manufacturer. – All manufacturer shall have to, -

(1) register on the portal;

(2) collect e-waste generated during the manufacture of any electrical and electronic equipment and ensure its recycling or disposal;

(3) file annual and quarterly returns in the laid down form on the portal on or before end of the month succeeding the quarter or year, as the case may be, to which the return relates.

6. Responsibilities of the producer. - The producer of electrical and electronic equipment listed in Schedule I shall be responsible for -

(1) registration on the portal;

(2) obtaining and implementing extended producer responsibility targets as per Schedule-III and Schedule-IV through the portal:

Provided that the producer having extended producer responsibility plan under the provisions of the erstwhile E-Waste (Management) Rules, 2016 shall migrate under these rules as per the procedure laid down by the Central Pollution Control Board with approval of Steering Committee;

(3) creating awareness through media, publications, advertisements, posters or by any other means of communication;

(4) file annual and quarterly returns in the laid down form on the portal on or before the end of the month succeeding the quarter or year, as the case may be, to which the return relates.

7. Responsibilities of the refurbisher. – All refurbisher shall have to, -

(1) register on the portal;

(2) collect e-waste generated during the process of refurbishing and hand over the waste to registered recycler and upload information on the portal;

(3) ensure that the refurbished equipment shall be as per Compulsory Registration Scheme of the Ministry of Electronics and Information Technology and Standards of Bureau of Indian Standards framed for this purpose;

(4) file annual and quarterly returns in the laid down form on the portal on or before the end of the month succeeding the quarter or year, as the case may be, to which the return relates.

8. Responsibilities of bulk consumer. - Bulk consumers of electrical and electronic equipment listed in Schedule I shall ensure that e-waste generated by them shall be handed over only to the registered producer, refurbisher or recycler.

9. Responsibilities of the recycler. - All recycler shall have to, -

(1) register on the portal;

(2) ensure that the facility and recycling processes are in accordance with the standards or guidelines laid down by the Central Pollution Control Board in this regard from time to time;

(3) ensure that the fractions or material not recycled in its facility is sent to the respective registered recyclers;

(4) ensure that residue generated during recycling process is disposed of in anauthorised treatment storage disposal facility;

(5) maintain record of e-waste collected, dismantled, recycled and sent to registered recycler on the portal and make available all records for verification or audit as and when required;

(6) file annual and quarterly returns in the laid down form on the portal on or before the end of the month succeeding the quarter or year, as the case may be, to which the return relates;

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(7) accept waste electrical and electronic equipment or components not listed in Schedule-I for recycling provided that they do not contain any radioactive material and same shall be uploaded on the portal;

(8) create awareness through media, publications, advertisements, posters or by such other means of communication;

(9) account for and upload information about any non-recyclable e-waste or any quantity which is not recycled and disposed of;

(10) take help of dismantlers for recycling purposes:

Provided that it shall be the responsibility of recycler to ensure proper material flow to and from those dismantlers and the dismantler shall give dismantled material to registered recycler only and maintain record of the same.

10. Responsibilities of State Government or Union territories. - (1) The Department of Industry in the State and Union territory or any other government agency authorised in this regard by the State Government or the Union territory, as the case may be, shall ensure earmarking or allocation of industrial space or shed for e-waste dismantling and recycling in the existing and upcoming industrial park, estate and industrial clusters.

(2) Department of Labor in the State and Union territory or any other government agency authorised in this regard by the State Government or the Union territory, as the case may be, shall, -

(a) ensure recognition and registration of workers involved in dismantlingand recycling;

(b) assist formation of groups of such workers to facilitate setting up of dismantling facilities;

(c) undertake industrial skill development activities for the workers involved in dismantling and recycling;

(d) undertake annual monitoring and to ensure safety and health of workers involved in dismantling and recycling.

CHAPTER IV

11. Procedure for storage of e-waste. - Every manufacturer, producer, refurbisher and recycler may store the e-waste for a period not exceeding one hundred and eighty days and shall maintain a record of sale, transfer and storage of e-wastes and make these records available for inspection and the storage of the e-waste shall be done as per the applicable rules or guidelines for the time being in force:

Provided that the Central Pollution Control Board may extend the said period up to three hundred and sixty-five days in case the e-waste needs to be specifically stored for development of a process for its recycling or reuse.

CHAPTER V

12. Management of solar photo-voltaic modules or panels or cells. – (1) These rules shall be applicable to solar photo-voltaic modules or panels or cells, subject to provisions of this chapter.

(2) Every manufacturer and producer of solar photo-voltaic modules or panels or cells shall, -

(i) ensure registration on the portal;

(ii) store solar photo-voltaic modules or panels or cells waste generated up to the year 2034-2035 as per the guidelines laid down by the Central Pollution Control Board in this regard;

(iii) file annual returns in the laid down form on the portal on or before the end of the year to which the return relates up to year 2034-2035;

(iv) ensure that the processing of the waste other than solar photo-voltaic modules or panels or cells shall be done as per the applicable rules or guidelines for the time being in force;

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(v) ensure that the inventory of solar photo-voltaic modules or panels or cells shall be put in place distinctly on portal;

(vi) comply with standard operating procedure and guidelines laid down by the Central Pollution Control Board in this regard.

(3) Recycler of solar photo-voltaic modules or panels or cells shall be mandated for recovery of material as laid down by the Central Pollution Control Board in this regard.

CHAPTER VI

13. Modalities of the extended producer responsibility Regime. – (1) All producers shall fulfil their extended producer responsibility obligation as per Schedule-III and Schedule-IV, in doing so they may also take help of third party organisations such as producer responsibility organisations, collection centres, dealers etc.:

Provided that the extended producer responsibility shall lie entirely on the producer only.

(2) The extended producer responsibility for each product shall be decided on the basis of the information provided by the producers on the portal and the individual product's life period as laid down by the Central Pollution Control Board in this regard and the targets specified in Schedule-III and Schedule-IV.

(3) (i) The producer shall fulfill their extended producer responsibility through online purchase of extended producer responsibility certificate from registered recyclers only and submit it online by filing quarterly return.

(ii) The details provided by producer and registered recycler shall be cross-checked on the portal.

(iii) In case of any difference, the lower figure shall be considered towards fulfilment of extended producer responsibility obligation of the producer.

(iv) The certificates shall be subject to environmental audit by the Central Pollution Control Board or any other agencies authorized by the Central Pollution Control Board in this regard.

14. Extended producer responsibility Certificate Generation. – (1) Recycling. - (i) The Central Pollution Control Board shall generate extended producer responsibility certificate through the portal in favour of a registered recycler in the format laid down by it in this regard.

(ii) (a) The quantity eligible for generation of extended producer responsibility certificate shall be calculated by the following formula namely:

*QEPR = Qp x Cf

**the QEPR is the quantity eligible for generation of the certificate, Qp is the quantity of the end product and Cf is the conversion factor (quantity of inputs required for production of one unit of output)*

(b) Conversion factor Cf for each end product shall be determined by Central Pollution Control Board with the approval of the steering committee.

(iii) The validity of the extended producer responsibility certificate shall be two years from the end of the financial year in which it was generated and the expired certificate automatically extinguished after the period unless extinguished earlier as per the provisions of these rules.

(iv) Each extended producer responsibility certificate shall have a unique number containing year of generation, code of end product, recycler code and a unique code and the extended producer responsibility certificates shall be in the denominations of 100, 200, 500 and 1000 kg or such other denominations as may be laid down by the Central Pollution Control Board with the approval of the Steering Committee.

(2) Refurbishing. – (i) The e-waste shall also be allowed for refurbishing and refurbisher shall have to get registered on the portal and based on the data provided, refurbishing certificate shall be generated in favour of a registered refurbisher in the format laid down by it in this regard.

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(ii) On production of the refurbishing certificates purchased from the registered refurbishers, the extended producer responsibility of the producers shall be deferred by the duration as laid down by the Central Pollution Control Board for the corresponding quantity of e-waste and shall be added to the extended producer responsibility of the producer upon expiry of the extended life of the refurbished product.

(iii) To incentivise refurbishing, only 75 per cent of the deferred quantity shall be added to the extended producer responsibility of the producer for recycling upon expiry of the extended life of the refurbished product.

***Example:* -** If a producer has extended producer responsibility obligation of 100 tonnes in the year 2023-2024 and he purchases recycling certificate of 60 tonnes and refurbishing certificate of 40 tonnes and the concerned item has extended life of five years due to refurbishing.

In this case 60 tonnes of the extended producer responsibility of the producer shall be achieved in the year 2023-2024 itself and 75 per cent of the reaming 40 tonne i.e. 30 tonnes shall be carried over and added to the extended producer responsibility of that producer for the year 2028-2029 for that item.

(iv) The extended producer responsibility obligation shall be extinguished only after end of life disposal through a registered recycler and producing extended producer responsibility certificate and not by refurbishing certificate.

15. Transaction of extended producer responsibility certificates. - (1) A producer may purchase extended producer responsibility certificates limited to its extended producer responsibility liability of current year (Year Y) plus any leftover liability of preceding years plus 5 per cent of the current year liability.

(2) The extended producer responsibility obligation shall have to be fulfilled by the producers by proportionately purchasing extended producer responsibility certificate on quarterly basis.

(3) As soon as the producer purchases extended producer responsibility certificate, it shall be automatically adjusted against its liability and priority in adjustment shall be given to earlier liability and the extended producer responsibility certificate so adjusted shall be automatically extinguished and cancelled.

(4) As soon as producer purchases refurbishing certificates its extended producer responsibility liability shall be deferred automatically for the relevant quantity of the product, for the duration as laid down by the Central Pollution Control Board.

(5) The availability, requirement and other details of the extended producer responsibility certificate and refurbishing certificates for every producer or recycler or refurbisher shall be made available on the portal.

(6) All the transactions under these rules shall be recorded and submitted by the producers or recyclers on the portal at the time of filing of quarterly returns.

CHAPTER VII

REDUCTION IN THE USE OF HAZARDOUS SUBSTANCES IN THE MANUFACTURE OF ELECTRICAL AND ELECTRONIC EQUIPMENT AND THEIR COMPONENTS OR CONSUMABLES OR PARTS OR SPARES

16. Reduction in the use of hazardous substances in the manufacture of electrical and electronic equipment and their components or consumables or parts or spares. – (1) Every producer of electrical and electronic equipment and their components or consumables or parts or spares listed in Schedule I shall ensure that, new electrical and electronic equipment and their components or consumables or parts or spares do not contain Lead, Mercury, Cadmium, Hexavalent Chromium, polybrominated biphenyls and polybrominated diphenyl ethers beyond a maximum concentration value of 0.1 per cent by weight in homogenous materials for lead, mercury, hexavalent chromium, polybrominated biphenyls and polybrominated diphenyl ethers and of 0.01 per cent by weight in homogenous materials for cadmium.

(2) Components or consumables or parts or spares required for the electrical and electronic equipment placed in the market prior to the 1st May, 2014 may be exempted from the provisions

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of sub-rule (1) provided reduction of hazardous substances compliant parts and spares are not available.

(3) The applications listed in Schedule-II shall be exempted from provisions of sub- rule (1).

(4) Every producer of applications listed in Schedule-II shall ensure that the limits of hazardous substances as given in Schedule-II are to be complied.

(5) Every producer shall provide the detailed information on the constituents of the equipment and their components or consumables or parts or spares along with a declaration of conformance to the reduction of hazardous substances provisions in the product user documentation.

(6) Imports or placement in the market for new electrical and electronic equipment shall be permitted only for those which are compliant to provisions of sub-rules (1) and (4).

(7) Manufacture and supply of electrical and electronic equipment used for defence and other similar strategic applications shall be excluded from provisions of sub- rule (1).

(8) Every producer shall provide information on the compliance of the provisions of sub-rule (1) and this information shall be in terms of self-declaration.

(9) Manufacturer shall use the technology or methods so as to make the end product recyclable;

(10) Manufacturer shall ensure that component or part made by different manufacturer are compatible with each other so as to reduce the quantity of e-waste.

(11) The Central Pollution Control Board shall conduct random sampling of electrical and electronic equipment placed on the market to monitor and verify the compliance of reduction of hazardous substances provisions and the cost for sample and testing shall be borne by the producer and the random sampling shall be as per the guidelines laid down by the Central Pollution Control Board in this regard.

(12) If the product does not comply with reduction of hazardous substances provisions, the producer shall take corrective measures to bring the product into compliance and withdraw or recall the product from the market, within a reasonable period as per the guidelines laid down by the Central Pollution Control Board in this regard.

(13) The Central Pollution Control Board shall lay down the methods for sampling andanalysis of hazardous substances as listed in sub-rule (1) with respect to the items listed in Schedule-I and Schedule-II and also enlist the labs for the said purpose.

CHAPTER VIII

MISCELLANEOUS

17. Duties of Authorities. - Subject to the other provisions of these rules, the authorities shall perform duties as specified in Schedule-V.

18. Annual Report. - The Central Pollution Control Board shall submit an annual report to the Ministry of Environment, Forest and Climate Change regarding status of implementation of the e-waste management rules with quantitative and qualitative analysis along with its recommendations, within one month of the end of the financial year.

19. Transportation of e-waste. - Transportation of waste generated from manufacturing or recycling destined for final disposal to a treatment, storage and disposal facility shall follow the provisions under the Hazardous and Other Wastes (Management and Transboundary Movement) Rules, 2016.

20. Accident reporting. - Where an accident occurs at the facility processing e-waste or during transportation of e-waste, the producer, refurbisher, transporter, dismantler, or recycler, as the case may be, shall report immediately to the concerned State Pollution Control Board about the accident through telephone and e-mail.

21. Appeal. - (1) Any person aggrieved by an order of suspension or cancellation or refusal of registration or its renewal passed by the Central Pollution Control Board, within a period of thirty days

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from the date on which the order is communicated to him, prefer an appeal to the Additional Secretary or Joint Secretary, Ministry of Environment, Forest and Climate Change duly nominated by the Central Government in this regard.

(2) The Appellate Authority may entertain the appeal after expiry of the said period of thirty days if it is satisfied that the appellant was prevented by sufficient cause from filing the appeal in time.

22. Environmental Compensation. - (1) The Central Pollution Control Board shall lay down guidelines for imposition and collection of environmental compensation on any entity in case of violation of any of the provision of these rules and guidelines issued hereunder and the said guidelines shall be in accordance with these rules and shall be approved by the Ministry of Environment, Forest and Climate Change.

(2) The Central Pollution Control Board shall also lay down guidelines for imposition and collection of environmental compensation on the producer in case of non-fulfilment of obligations set out in these rules and transaction or use of false extended producer responsibility certificate and the said guidelines shall be in accordance with these rules and shall be approved by the Ministry of Environment, Forest and Climate Change.

(3) The environmental compensation shall also be levied on unregistered producers, manufacturer, refurbisher, recyclers and any entity which aids or abets the violation of these rules.

(4) (i) Payment of environmental compensation shall not absolve the producer from the extended producer responsibility as specified in these rules and the unfulfilled extended producer responsibility for a particular year shall be carried forward to the next year and so on and up to three years.

(ii) In case, the shortfall of extended producer responsibility obligation is addressed after one year, 85 per cent of the environmental compensation levied shall be returned to the producer.

(iii) In case, the shortfall of extended producer responsibility obligation is addressed after two year, 60 per cent of the environmental compensation levied shall be returned to the producer, and in case, the shortfall of extended producer responsibility obligation is addressed after three year, 30 per cent of the environmental compensation levied shall be returned to the producer, thereafter no environmental compensation shall be returned to the producer.

(5) False information resulting in over generation of extended producer responsibility certificates by recycler shall result in revocation of registration and imposition of environmental compensation which shall not be returnable and repeat offence, violation of these rules for three times or more shall also result in permanent revocation of registration over and above the environmental compensation charges.

(6) (i) The funds collected under environmental compensation shall be kept in a separate Escrow account by the Central Pollution Control Board and the funds collected shall be utilizsed in collection and recycling or end of life disposal of uncollected, historical, orphaned e-waste and non-recycled or non-end of life disposal of e-waste on which the environment compensation is levied, research and development, incentivising recyclers, financial assistance to local bodies for managing waste management projects and on other heads as decided by the committee.

(ii) The modalities and heads for utilisation of the funds shall be decided by the Steering Committee with the approval of the Ministry of Environment, Forest and Climate Change.

23. Prosecution. - Any person, who provides incorrect information required under these rules for obtaining extended producer responsibility certificates, uses or causes to be used false or forged extended producer responsibility certificates in any manner, willfully violates the directions given under these rules or fails to cooperate in the verification and audit proceedings, may be prosecuted under section 15 of the Act, 1986 and this prosecution shall be in addition to the environmental compensation levied under rule 22.

24. Verification and Audit. – The Central Pollution Control Board by itself or through a designated agency shall verify compliance of these rules by producers, manufacturer, refurbisher, dismantlers and

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recyclers through random inspection and periodic audit, as deemed appropriate so as to take action against violations of the provisions of these rules as per rule 22.

25. Steering Committee. - (1) There shall be a Steering Committee under the Chairmanship of Chairman, Central Pollution Control Board to oversee the overall implementation of these rules and the Steering Committee shall comprise of following other members in addition to the chair, namely: -

(a) one representative of the Ministry of Environment, Forest and Climate Change;

(b) one representative of the Ministry of Electronics and Information Technology;

(c) one representative of the Ministry of New and Renewable Energy;

(d) one representative of the Ministry of Housing and urban Affairs;

(e) a maximum of two representatives of electrical and electronic equipment Producer and Manufacturer Association;

(f) a maximum of two representatives of E-Waste Recycler Associations;

(g) one representative of State Pollution Control Board or Pollution Control Committee as co-opted by the Chairman of the Steering Committee;

(h) Head of the Concerned Division of the Central Pollution Control Board – Member- Convener.

(2) The steering committee shall be responsible for overall implementation, monitoring and supervision of these rules and it shall also decide upon the disputes arisen from time to time and on representations received in this regard, and shall refer to the Ministry of Environment, Forest and Climate Change any substantial issue arisen or pertaining to these rules.

(3) The steering committee shall review and revise the guidelines or extended producer responsibility target or addition of new Electrical and Electronic Equipment in Schedule I, in view of the technological advancements and other factors with the approval of the Central Government.

(4) The Steering Committee shall take all such measures as it deems necessary for proper implementation of provisions of these rules.

SCHEDULE - I

[See rules 2, 3 (b), 3 (c), 3 (m), 3 (o), 3 (p), 3 (q), 3 (v), 6, 8, 10 (7), 16 (13)]

Categories of electrical and electronic equipment including their components,consumables, parts and spares covered under the rules

Sl. No.	Categories of electrical and electronic equipment	Electrical and electronic equipment code
(i)	**Information technology and telecommunication equipment:**	
	Centralized data processing: Mainframes, Minicomputers	ITEW1
	Personal Computing: Personal Computers (Central Processing unit with input and output devices)	ITEW2
	Personal Computing: Laptop Computers (Central Processing unit with input and output devices)	ITEW3
	Personal Computing: Notebook Computers	ITEW4
	Personal Computing: Notepad Computers	ITEW5
	Printers including cartridges	ITEW6
	Copying Equipment	ITEW7
	Electrical and Electronic Typewriters	ITEW8
	User terminal and Systems	ITEW9
	Facsimile	ITEW10
	Telex	ITEW11

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	Telephones	ITEW12
	Pay telephones	ITEW13
	Cordless telephones	ITEW14
	Cellular telephones	ITEW15
	Answering System	ITEW16
	Products or equipment of transmitting sound, images or other information by telecommunications	ITEW17
	BTS (all components excluding structure of tower)	ITEW18
	Tablets, I-PAD	ITEW19
	Phablets	ITEW20
	Scanners	ITEW21
	Routers	ITEW22
	GPS	ITEW23
	UPS	ITEW24
	Inverter	ITEW25
	Modems	ITEW26
	Electronic data storage devices	ITEW27
(ii)	**Consumer Electrical and Electronics and Photovoltaic Panels:**	
	Television sets (including sets based on Liquid Crystal Display and light Emitting Diode Technology)	CEEW1
	Refrigerator	CEEW2
	Washing Machine	CEEW3
	Air- Conditioners excluding centralised air conditioning plants	CEEW4
	Fluorescent and other Mercury containing lamps	CEEW5
	Screen, Electronic Photo frames, Electronic Display Panel, Monitors	CEEW6
	Radio sets	CEEW7
	Set top Boxes	CEEW8
	Video Cameras	CEEW9
	Video Recorders	CEEW10
	Hi-Fi Recorders	CEEW11
	Audio Amplifiers	CEEW12
	Other products or equipment for the purpose of recording or reproducing sound or images including signals and other technologies for the distribution of sound and image by telecommunications Solar panels/cells, solar Photovoltaic	CEEW13
	panels/cells/modules.	CEEW14
	Luminaires for fluorescent lamps with the exception of luminaires in households	CEEW15
	High intensity discharge lamps, including pressure sodium lamps and metal halide lamps	CEEW16
	Low pressure sodium lamps	CEEW17
	Other lighting or equipment for the purpose of spreading or controlling light excluding filament bulbs	CEEW18
	Digital camera	CEEW19
(iii)	**Large and Small Electrical and Electronic Equipment**	
	Large cooling appliances	LSEEW1
	Freezers	LSEEW2
	Other large appliances used for refrigeration, conservation and storage of food	LSEEW3

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	Clothes dryers	LSEEW4
	Dish Washing Machines	LSEEW5
	Electric cookers	LSEEW6
	Electric stoves	LSEEW7
	Electric hot plates	LSEEW8
	Microwaves, Microwave Oven	LSEEW9
	Other large appliances used for cooking and other processing of food	LSEEW10
	Electric heating appliances	LSEEW11
	Electric radiators	LSEEW12
	Other large appliances for heating rooms, beds, seating furniture	LSEEW13
	Electric fans	LSEEW14
	Other fanning, exhaust ventilation and conditioning equipment	LSEEW15
	Vacuum cleaners	LSEEW16
	Carpet sweepers	LSEEW17
	Other appliances for cleaning	LSEEW18
	Appliances used for sewing, knitting, weaving and other processing for textiles	LSEEW19
	Iron and other appliances for ironing, mangling and other care of clothing	LSEEW20
	Grinders, coffee machines and equipment for opening or sealing containers or packages	LSEEW21
	Smoke detector	LSEEW22
	Heating Regulators	LSEEW23
	Thermostats	LSEEW24
	Automatic dispensers for hot drinks	LSEEW25
	Automatic dispensers for hot or cold bottles or cans	LSEEW26
	Automatic dispensers for solid products	LSEEW27
	Automatic dispensers for money	LSEEW28
	All appliances which deliver automatically all kinds of products	LSEEW29
	Indoor air purifier	LSEEW30
	Hair dryer	LSEEW31
	Electric shaver	LSEEW32
	Electric kettle	LSEEW33
	Electronic display panels/board/visual display unit	LSEEW34
(iv)	**Electrical and Electronic Tools (With the exception of large- Scale Stationary Industrial Tools)**	
	Drills	EETW1
	Saws	EETW2
	Sewing Machines	EETW3
	Equipment for turning, milling, sanding, grinding, sawing, cutting, shearing, drilling, making holes, punching, folding, bending or similar processing of wood, metal and other materials	EETW4
	Tools for riveting, nailing or screwing or removing rivets, nails, screws or similar uses	EETW5
	Tools for welding, soldering, or similar use	EETW6
	Equipment for spraying, spreading, dispersing or other treatment of liquid or gaseous substance by other means	EETW7
	Tools for mowing or other gardening activities	EETW8

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(in)	**Toys, Leisure and Sports Equipment**	
	Electrical trains or car racing sets Hand-	TLSEW1
	held video games consoles Video	TLSEW2
	games	TLSEW3
	Computers for biking, diving, running, rowing, etc.	TLSEW4
	Sports equipment with electric or electronic components	TLSEW5
	Coin slot machines	TLSEW6
(we)	**Medical Devices (With the Exception of All Implanted and Infected Products)**	
	Radiotherapy equipment and accessories	MDW1
	Cardiology equipment and accessories	MDW2
	Dialysis equipment and accessories	MDW3
	Pulmonary ventilators and accessories	MDW4
	Nuclear Medicine Equipment and accessories	MDW5
	Laboratory equipment for in vitro diagnosis and accessories	MDW6
	Analysers and accessories	MDW7
	Magnetic Resonance Imaging (MRI), Positron Emission Tomography (PET) Scanner, Computed Tomography (CT) Scanner, & Ultrasound Equipment along with accessories	MDW8
	Fertilization tests equipment and accessories	MDW9
	Other electric appliances/equipment/kits used for preventing, screening, detecting, monitoring, evaluating, reviewing, examining, investigating, probing, treating illness sickness, disease, disorder, affliction, infection, injury, trauma, abuse or disability including the Mobiles, Tablets or any other device with the features having the potential of sex selection and their accessories	MDW10
(vii)	**Laboratory Instruments**	
	Gas analyses	LIW1
	Equipment having electrical and electronic components	LIW2

SCHEDULE -II

[See rules 16(3), 16(4), 16(13)]

Applications, which are exempted from the requirements ofsub-rule (1) of rule 16	
Sl. No.	**Substance**
1.	Mercury in single capped (compact) fluorescent lamps not exceeding (perburner):
(a)	for general lighting purposes <30 W : 2.5 mg
(b)	for general lighting purposes ÿ 30 W and <50 W : 3.5mg
(c)	for general lighting purposes ÿ 50 W and <150 W : 5mg
(d)	for general lighting purposes ÿ150 W : 15 mg
(e)	for general lighting purposes with circular or square structural shape and tubediameter ÿ17 mm : 7mg
(f)	for special purposes:5 mg
2.(a)	Mercury in double-capped linear fluorescent lamps for general lighting purposes not exceeding (per lamp):
(1)	Tri-band phosphor with normal life time and a tube diameter < 9mm (e.g.T2): 4mg
(2)	Tri-band phosphor with normal life time and a tube diameter ÿ 9 mm and ÿ 17 mm (e.g. T5): 3 mg

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(3)	Tri- band phosphor with normal life time and a tube diameter >17 mm and ÿ 28 mm(e.g. T8): 3.5 mg
(4)	Tri-band phosphor with normal life time and a tube diameter >28 mm (e.g. T12):3.5 mg
(5)	Tri-band phosphor with long life time (ÿ25000 h):5mg
2.(b)	Mercury in other fluorescent lamps not exceeding(per lamp):
(1)	Linear halophosphate lamps with tube >28 mm (e.g. T 10 and T12):10 mg
(2)	Non-linear halophosphate lamps(all diameters):15mg
(3)	Non-linear tri-band phosphor lamps with tube diameter >17 mm(e.g.T9):15 mg
(4)	Lamps for other general lighting and special purposes (e.g. inductionlamps):15mg
3.	Mercury in cold cathode fluorescent lamps and external electrode fluorescentlamps (CCFL and EEFL)for special purposes not exceeding (per lamp):
(a)	Short length(< 500 mm):3.5mg
(b)	Medium length(>500 mm and<1500 mm): 5mg
(c)	Long length(>1500 mm): 13mg
4.(a)	Mercury in other low pressure discharge lamps (per lamp): 15mg
(b)	Mercury in High Pressure Sodium (vapour) lamps for general lighting purposes not exceeding (per burner)in lamps with improved colour renderingindex Ra>60:
(b)-I	P ÿ155 W : 30 mg
(b)-II	155 W < P <405 W : 40 mg
(b)-III P >405 W: 40 mg	
(c)	Mercury in other High Pressure Sodium (vapour) lamps for general lighting purposes not exceeding (per burner):
(c)-I	P≤155 W:25mg
(c)-II	155 W < P < 405 W:30 mg
(c)-III P >405 W:40 mg	
(d)	Mercury in High Pressure Mercury (vapour) lamps (HPMV)
(e)	Mercury in metal halide lamps (MH)
(f)	Mercury in other discharge lamps for special purposes not specifically mentioned in this Schedule
5.(a)	Lead in glass of cathode ray tubes
(b)	Lead in glass of fluorescent tubes not exceeding 0.2% by weight
6.(a)	Lead as an alloying element in steel for machining purposes and in galvanized steel containing up to 0.35% lead by weight
(b)	Lead as an alloying element in aluminium containing up to 0.4% lead byweight
(c)	Copper alloy containing up to 4% lead by weight
7.(a)	Lead in high melting temperature type solders (i.e. lead-based alloys containing 85% by weight or more lead)
(b)	Lead in solders for servers, storage and storage array systems, network infrastructure equipment for switching, signalling, transmission, and network management for telecommunications
(c)	Electrical and electronic components containing lead in a glass or ceramic other than dielectric ceramic in capacitors, e.g. piezoelectronic devices, or in aglass or ceramic matrix compound.
(d)	Lead in dielectric ceramic in capacitors for a rated voltage of 125 V AC or250 V DC or higher

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(and)	Lead in dielectric ceramic in capacitors for a rated voltage of less than 125V AC or 250 V DC
8.(a)	Cadmium and its compounds in one shot pellet type thermal cut-offs
(b)	Cadmium and its compounds in electrical contracts
9.	Hexavalent chromium as an anticorrosion agent of the carbon steel cooling system in absorption refrigerators up to 0.75% by weight in the cooling solution
(a)	Lead in bearing shells and bushes for refrigerant-containing compressors for heating, ventilation, air conditioning and refrigeration (HVACR) application.
10.(a)	Lead used in C-press compliant pin connector systems
(b)	Lead used in other than C-press compliant pin connector systems
11.	Lead as a coating material for the thermal conduction module C- ring
12.(a)	Lead in white glasses used for optical applications
(b)	Cadmium and lead in filter glasses and glasses used for reflectance standards.
13.	Lead in solders consisting of more than two elements for the connection between the pins and the package of microprocessors with a lead content of more than 80% and less than 85% by weight
14.	Lead in solders to complete a viable electrical connection betweensemiconductor die and carrier within integrated circuit flip chip packages.
15.	Lead in linear incandescent lamps with silicate coated tubes
16.	Lead halide as radiant agent in high intensity discharge (HID) lamps used forprofessional reprography applications.
17.(a)	Lead as activator in the fluorescent powder (1% lead by weight or less) of discharge lamps when used as specialty lamps for diazoprinting reprography, lithography, insect traps, photochemical and curing processes containing phosphors such as SMS ((Sr, Ba)2Mg Si2O7:Pb)
(b)	Lead as activator in the fluorescent powder (1% lead by weight or less) of discharge lamps when used as sun tanning lamps containing phosphors suchas BSP (Ba Si2O5:Pb)
18.	Lead with PbBiSn-Hg and PblnSn-Hg in specific compositions as main amalgam and with PbSn-Hg as auxiliary amalgam in very compact energy saving lamps (ESL)
19.	Lead oxide in glass used for bonding front and rear substrates of flatfluorescent lamps used for Liquid Crystal Displays (LCDs)
20.	Lead and cadmium in printing inks for the application of enamels onglasses, such as borosilicate and soda lime glasses
21.	Lead in finishes of fine pitch components other than connectors with a pitch of 0.65 mm and less
22.	Lead in solders for the soldering to machine through hole discoidal and planar array ceramic multilayer capacitors
23.	Lead oxide in surface conduction electron emitter displays (SED) used instructural elements, notably in the seal frit and frit ring.
24.	Lead oxide in the glass envelope of black light blue lamps
25.	Lead alloys as solder for transducers used in high-powered (designated to operate for several hours at acoustic power levels of 125 dB SPL and above) loudspeakers
26.	Lead bound in crystal glass
27.	Cadmium alloys as electrical/mechanical solder joints to electrical conductors located directly on the voice coil in transducers used in high-powered loudspeakers with sound pressure levels of 100 dB(A) and more

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28.	Lead in soldering materials in mercury free flat fluorescent lamps (which e.g. are used for liquid crystal displays, design or industrial lighting)
29.	Lead oxide in seal frit used for making window assemblies for Argon and Krypton laser tubes
30.	Lead in solders for the soldering of thin copper wires of 100 µm diameter and less in power transformers
31.	Lead in cermet-based trimmer potentiometer elements
32.	Mercury used as a cathode sputtering inhibitor in DC plasma displays with acontent up to 30 mg per display
33.	Lead in the plating layer of high voltage diodes on the body basis of a zinc borate glass
34.	Cadmium and cadmium oxide in thick film pastes used on aluminium bonded beryllium oxide
35.	Cadmium in color converting II-VI LEDs (<10 µg Cd per mm^2 of light-emitting area) for use in solid state illumination or display systems.

SCHEDULE - III

[See rules 3(m), 6(2), 13(1), 13(2)]

Sl. No.	Year (Y)	E-Waste Recycling Target (by weight)
1.	2023 -2024	60% of the quantity of an EEE placed in the market in year Y-X, where 'X' is the average life of that product
2.	2024 -2025	60% of the quantity of an EEE placed in the market in year Y-X, where 'X' is the average life of that product
3.	2025 -2026	70% of the quantity of an EEE placed in the market in year Y-X, where 'X' is the average life of that product
4.	2026-2027	70% of the quantity of an EEE placed in the market in year Y-X, where 'X' is the average life of that product
5.	2027-2028	80% of the quantity of an EEE placed in the market in year Y-X, where 'X' is the average life of that product
6.	2028-2029 onwards	80% of the quantity of an EEE placed in the market in year Y-X, where 'X' is the average life of that product

Note: (1) E-waste recycling target shall be reviewed and may be increased after the end of year 2028-2029.

(2) The importers of used electrical and electronic equipment shall have 100% extended producer responsibility obligation for the imported material after end of life, if not re-exported.

(3) E-Waste recycling targets shall not be applicable for waste generated from solar photo-voltaic modules or panels or cells.

SCHEDULE - IV

[See rules 3(m), 6(2), 13(1), 13(2)]

Extended Producer Responsibility targets for producers, who have started sales operations recently, i.e. number of years of sales operations is less than average life of their products mentioned in the guidelines issued by the Central Pollution Control Board from time to time.

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Sl. No.	Year	E-Waste Recycling Target (by weight)
1.	2023-2024	15% of the sales figure of financial year 2021-22
2.	2024-2025	20% of the sales figure of financial year 2022-23
3.	2025-2026 onwards	20% of the sales figure of the financial year two years back

Note: (1) Once the number of years of sales operation equals the average life of their product mentioned in the guidelines issued by Central Pollution Control Board, their extended producer responsibility obligation shall be as per Schedule-III.

(2) E-Waste recycling targets shall not be applicable for waste generated from solar photo-voltaic modules or panels or cells.

SCHEDULE - V

[See rule (17)]

LIST OF AUTHORITIES AND COPRRERSPONDING DUTIES

Sl. No.	AUTHORITY	COPRRERSPONDING DUTIES
1.	Central Pollution Control Board	(1) Operation and maintenance of Extended Producer Responsibility Portal and monitoring of Extended Producer Responsibility compliance. (2) Coordination with State Pollution Control Boards (3) Prepare and issue guidelines and Standard Operating procedures for collection, storage, transportation, segregation, refurbishment, dismantling, recycling and disposal of e-waste under these rules from time to time, and also issue necessary Forms/ Returns for implementation of these rules. (4) Conduct random check for ascertaining compliance of the e-waste rules and may take help of Customs/ State Government or any other agency (ies). (5) Documentation, compilation of data on e-waste and uploading on websites of Central Pollution Control Board. (6) Actions against violation of these rules. (7) Conducting training programmes to develop capacity including State Pollution Control Boards and Urban Local Bodies officials. (8) Conducting awareness programmes on e-waste management, RE/CE label, legislation to make consumers responsible towards product usage and safe disposal. (9) Integrate all stakeholders with the centralized digital system. (10) Submit Annual Report to the Ministry. (11) Enforcement of provisions regarding reduction in use of hazardous substances in manufacture of electrical and electronic equipment. (12) Interaction with IT industry for reducing hazardous substances. (13) Set and revise targets for compliance to the reduction in use of hazardous substance in manufacture of electrical and electronic equipment from time to time. (14) Ensure RoHS compliance and its certifications through a recognized lab and its mandatory checks. (15) Any other function delegated by the Ministry under these rules from time to time. (1)
2.	State Pollution Control Boards or Pollution Control Committees of Union territories	Inventorisation of e-waste. (2) Monitoring and compliance of Extended Producer Responsibility as directed by Central Pollution Control Board. (3) Conduct random inspection of recycler and refurbisher and monitoring recycling capacity utilization.

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		(4) Implementation of programmes to encourage environmentally sound recycling. (5) Any other function delegated by the Ministry/ Central Pollution Control Board under these rules.
3.	Responsibilities of Local Bodies (Urban and Rural).	(1) To ensure that e-waste if found to be mixed with Municipal Solid Waste is properly segregated, collected and is channelised to registered recycler or refurbisher. (2) To ensure that e-waste pertaining to orphan products is collected and channelized to registered recycler or refurbisher. (3) To facilitate setting up e-waste collection, segregation and disposal systems. (4) Conducting training sessions to develop capacities of the urban and rural local bodies.
4.	Responsibilities of Port authority under Indian Ports Act, 1908 (15 of 1908) and Customs Authority under the Customs Act, 1962 (52 of 1962).	(1) Verify the import or export with respect to Extended Producer Responsibility under these rules. (2) Inform Central Pollution Control Board of any illegal traffic for necessary action. (3) Take action against importer for violations under theIndian Ports Act, 1908 or the Customs Act, 1962.
5.	Responsibilities of Bureau of Indian Standards/ Ministry of Electronics and Information Technology	To issue standards for refurbished products. Bureau of Indian Standards/ Ministry of Electronics and Information Technology shall also develop guidelines for refurbishers with respect to Compulsory Registration Scheme.

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